

Task Force to Reimagine Policing in Brookline Meeting Minutes

April 9, 2021 | 8:00 a.m.

Meeting held remotely on Zoom due to COVID-19; hosted by Town Staff Devon Fields, meeting Chaired by Raul Fernandez.

Members Present:

Raul Fernandez
Anne Weaver
Alexander Weinstein
Almas Dossa
Bonnie Bastien
Kimberley Richardson
Kristan Singleton
Malcolm Cawthorne
Mike Sandman
Chi Chi Wu
Eitan Hersh

Non-Voting Members Present:

Dan O’Leary, former Police Chief, and Department Task Force Liaison
Michael Downey, Brookline Assistant Town Counsel
Mel Kleckner, Brookline Town Administrator
Lloyd Gellineau, Brookline Office of Diversity, Inclusion and Community Relations Director
Ann Braga, Brookline HR Director

Members/Non-Voting Members Absent:

Others Present:

Bernard Greene
Savyon Cohen
Paul Yee
Donelle O’Neal

Announcements/Updates

Anne Weaver acknowledges and congratulates Bonnie Bastien and Chi Chi Wu for winning Brookline Women of the Year. Chi Chi Wu congratulates Malcolm Cawthorne for his feature in the Boston Globe Magazine sharing his experience as a black educator in Brookline. Lastly, Bonnie Bastien announces a Brookline Rising event scheduled for the evening of April 9, 2021, which is a community engagement event centered around affordable housing at Emerson Park.

The meeting minutes from March 26 and April 2, 2021, are unanimously approved.

Select Board Meeting Votes Discussion

- Raul Fernandez summarizes the votes that were taken and the discussion by Select Board members on Tuesday, April 6, 2021.
- Anne Weaver asks about the implementation of the CAHOOTS engagement and Mel Kleckner notes that the proposal was adopted as the Task Force presented it so they will begin the engagement based on the recommendations of the Task Force.
- Chi Chi Wu asks why Select Board members were not interested in removing the investigation division from the Police Department to the Human Resource Department. Raul Fernandez said that the Select Board wanted to let the PCAC handle a review of if investigations need to be removed from the Police Department and they didn't feel there was enough evidence to move it at this point. Bonnie Bastien said her interpretation was that the Select Board did not want to come from a place of mistrust with the Police Department. Malcolm Cawthorne notes that the Select Board is not acknowledging the public comment and public opinion. He presses that the Police Department is not above critique but he feels that is the way the Select Board is treating them. He notes that no one, even the officer in charge of the investigations, should be free of critique when they are working or operating in the public sphere. Alexander Weinstein says that the Select Board's position of starting in a place of trust with the Police Department is not appropriate and isn't a fair assessment of what is truly going on and the results the Task Force has found in Brookline.
- Raul Fernandez discusses a vote on holding a minimum of six public meetings annually which residents can ask questions and offer suggestions. Etian and Malcolm make comments. Kristan Singleton says that a meeting in partnership with a community organization that people of color feel comfortable with to reach impacted populations in the community. Bonnie Bastien seconds Kristan's statement saying that the Police Department can't run it alone because it will likely be populated with people who exclusively support the police. Anne Weaver echoes Bonnie Bastien's statement and recommends that the organization that helps facilitate these public meetings is BRIDGE. Raul Fernandez revises the vote to read:
 - Vote: That the Select Board directs the Brookline Police Department to develop and implement a plan to hold a minimum of six public meetings annually in which residents can ask questions and offer suggestions. Those meetings should be recorded and the Chief of Police and at least one Select Board member should be present. Each meeting should seek to engage a different segment of the Brookline community, with a regular focus on people of color and those who are low-income.

2.A.

- Raul Fernandez commits to checking in with BRIDGE on this recommendation and he believes this vote is clear and will be viable to move forward.
- Raul Fernandez recommends the following votes:
 - Vote: That the Select Board files a Town Meeting Warrant Article in the November 2021 Town Meeting for a Home Rule petition in the state legislature to permit certain limited traffic enforcement functions to be fulfilled by civilians.
 - Vote: That the Select Board directs the Town Administrator to conduct an assessment of the Town's non-PSB investments in youth programs, and to recommend enhancements to those investments as part of a more holistic approach to public safety. This can include, but should not be limited to transportation, financial assistance for programs, and funding for the Brookline Teen Center and other programs for youth.

Raul Fernandez closes by saying he will continue to push the Select Board for the meaningful progress that the Task Force has been working towards. He also notes that he feels it is his responsibility to push toward any positive change even if it is more moderate.

The meeting adjourns at 9:37 a.m.

3.A.

Task Force to Reimagine Policing in Brookline

Proposed Votes for the Select Board Meeting on April 20, 2021

Motion: That the Select Board direct the Brookline Police Department to develop and implement a plan to hold a minimum of six public meetings annually in which residents can ask questions and offer suggestions. The Chief of Police and at least one Select Board member will be present, and the meetings will be recorded. Each meeting should engage a different segment of the Brookline community, with a regular focus on people of color and residents who live in public and subsidized housing. The Department should seek to partner with organizations like Brookline for Racial Justice & Equity in their outreach efforts.

Motion: That the Select Board direct the Town Administrator to conduct an assessment of the Town's non-PSB investments in youth programs, and to recommend enhancements to those investments as part of a more holistic approach to public safety. This can include, but should not be limited to transportation, financial assistance for youth programs, and funding for the Brookline Teen Center and other programs for youth.

Motion: That the Select Board file a Town Meeting Warrant Article in the Fall 2021 Town Meeting for a Home Rule petition in the state legislature to permit certain limited traffic enforcement functions to be fulfilled by civilians.

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Voted to accept a Winter Shared Streets and Spaces grant from the Massachusetts Department of Transportation in the amount of \$199, 835 to fund the construction of three year round Blue Bike Stations, purchase one new BlueBike Station, and 15 BlueBike bikes.

Aye: Bernard Greene, Nancy Heller, Heather Hamilton, Raul Fernandez, John VanScoyoc

GRANT

Question of accepting \$2,000 in grant funds from the Brookline Community Foundation to the Office of Diversity, Inclusion, and Community Relations to be appropriated into account 5200SGA8 524010 to be used towards a facilitated Dialogue on Racism, Inequities and Engagement in Brookline in collaboration with Women Thriving, Inc and True Change Associates.

On motion it was,

Voted to accept \$2,000 in grant funds from the Brookline Community Foundation to the Office of Diversity, Inclusion, and Community Relations to be appropriated into account 5200SGA8 524010 to be used towards a facilitated Dialogue on Racism, In.

Aye: Bernard Greene, Nancy Heller, Heather Hamilton, Raul Fernandez, John VanScoyoc

CALENDAR

POLICING COMMITTEE/TASK FORCE RECOMMENDATIONS

Discussion and possible vote on the process/schedule and recommendations from the Committee on Policing Reforms and the Task Force to Reimagine Policing in Brookline.

Board member Fernandez reviewed that the Task Force to Reimagine Policing in Brookline has three recommendations before the board to take action on.

1. That the Select Board direct the Brookline Police Department to develop and implement a plan to hold a minimum of six public meetings annually in which residents can ask questions and offer suggestions. The Chief of Police and at least one Select Board member will be present, and the meetings will be recorded. Each meeting should engage a different segment of the Brookline community, with a regular focus on people of color and residents who live in public and subsidized housing. The Department should seek to partner with organizations like Brookline for Racial Justice & Equity in their outreach efforts.

Chair Greene expressed concern about setting up another process when we have an existing process in place in the community. The Community Engagement Specialist in the Office of Diversity Inclusion and community relations is the place for this in conjunction with the PACC. He added that the Police hold a community roll call meetings, perhaps this could be the foundation.

Vice Chair Hamilton feels the number of meetings is excessive; she would support quarterly meetings. Board member Fernandez responded that the purposes here are to better inform the public on policing and to hear from the public as well on policing.

Board member VanScoyoc would like to hear from the various parties that should be consulted. Police on the number of meetings, youth programs etc. he would like to decide at the end of Town Meeting, at the end of the process.

Board member Heller supports the idea, but would like more information on the process. We need to make sure we have all the information in terms of being able to structure a program around it.

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Board member VanScoyoc added that the reality that there are significant parts of the public who don't trust the police right now. And so who holds the meeting is one of the key questions here. There might be more productive use of these meetings. And I'd love the police department to hold meetings with the public. I'd like them to decide how best to do it, how they can get the most out of it. But I'd also like as Bernard was just suggesting emphasizing the role of our community engagement specialist in this to figure out how some forms of meetings can be held that invite the community in who don't trust the police right now and how there can be really heard.

On an amended motion by Chair Greene, it was,

Voted that the Select Board instruct the police department to work with the Community Engagement Specialist and the PCC to set up a reasonable schedule of meetings with the community to discuss police matters and other things.

Aye: Bernard Greene, Nancy Heller

Against: Raul Fernandez

Abstained: Heather Hamilton, John VanScoyoc

2. That the Select Board direct the Town Administrator to conduct an assessment of the Town's non-PSB investments in youth programs, and to recommend enhancements to those investments as part of a more holistic approach to public safety. This can include, but should not be limited to transportation, financial assistance for youth programs, and funding for the Brookline Teen Center and other programs for youth.

Board member Fernandez reviewed that this recommendation focuses on community engagement around re-centering public safety around youth and families, and investing beyond the school programs. This would include recreation, transportation financial assistance, funding for the Brookline Teen center, etc. This would require an assessment be conducted by the Town administrator.

Town Administrator Kleckner responded this is a reasonable proposal that has been in the report for a while; it would require consulting support expenses.

On motion it was,

Voted: That the Select Board direct the Town Administrator to conduct an assessment of the Town's non-PSB investments in youth programs, and to recommend enhancements to those investments as part of a more holistic approach to public safety. This can include, but should not be limited to transportation, financial assistance for youth programs, and funding for the Brookline Teen Center and other programs for youth.

Aye: Bernard Greene, Nancy Heller, Heather Hamilton, Raul Fernandez, John VanScoyoc

3. That the Select Board file a Town Meeting Warrant Article in the Fall 2021 Town Meeting for a Home Rule petition in the state legislature to permit certain limited traffic enforcement functions to be fulfilled by civilians.

Board member Fernandez noted that the task force dug into this extensively and he is not expecting the board to vote, but start the conversation. He referred to fatal traffic stops around the country, and we

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can't say Brookline is different; the town needs to look at this holistically. They are not recommending getting rid of police officers, if someone has a gun; we are not recommending sending social workers in.

Vice Chair offered that this can wait until after Town Meeting for a more robust discussion; this is a complicated issue.

The consensus was to wait until after this Town Meeting to address this and to focus on the state level, hoping that the state will set standards state- wide. It was also recommended that the Select Board put in a policy that address economic traffic stops, like a broken tail light.

No vote.

COMMON VICTUALLER LICENSE - SILK ROAD UYGHUR CUISINE

Question of approving the application of a new Common Victualler for Uyghurs Corp. d/b/a Silk Road Uyghur Cuisine at 1398 Beacon Street. Hours of operation will be Monday –Sunday 11:00 am to 10:00 9m. Seating will consist of 16 seats.

Adilai Ahadike applicant was present. She reviewed their menu and noted she has another restaurant in Cambridge.

On motion it was,

Voted to approve the application of a new Common Victualler for Uyghurs Corp. d/b/a Silk Road Uyghur Cuisine at 1398 Beacon Street. Hours of operation will be Monday –Sunday 11:00 am to 10:00 9m. Seating will consist of 16 seats.

Aye: Bernard Greene, Nancy Heller, Heather Hamilton, Raul Fernandez, John VanScoyoc

COMMON VICTUALLER LICENSE UPGRADE AND OUTDOOR SEATING APPROVAL - LIVITE

Question of approving the application of an upgrade of license type for Square Press LLC. d/b/a Livite at 1644 Beacon Street from a Food Vendor to a Common Victualler License. Proposed seating is 14 seats. Hours of operation are Monday – Saturday 7:00AM – 10:00PM and Sunday 7:00AM – 8:00PM.

Question of approving the application for outdoor seating for 8 seats.

Applicant Stephen Nagle reviewed that the space next door became available, so they will expand the restaurant and add a few seats.

On motion it was,

1. Voted to approve the application of an upgrade of license type for Square Press LLC. d/b/a Livite at 1644 Beacon Street from a Food Vendor to a Common Victualler License. Proposed seating is 14 seats. Hours of operation are Monday – Saturday 7:00AM – 10:00PM and Sunday 7:00AM – 8:00PM.